

03.07.2024:

ORDER ON I.A.NO.4

1. This application is filed by Decree Holder under Order 21 Rule 95 r/w Section 151 of CPC seeking this Court to direct the Judgment Debtor to vacate the schedule property and deliver the vacant physical possession of the schedule property to the Auction Purchaser – Decree Holder.
2. It is contended by the Applicant – Decree Holder – Auction Purchaser that he had filed a suit in O.S.No.4442/2017 as against the Judgment Debtor by name M.V. Srinivas seeking relief of Specific Performance of Agreement and that alternatively to refund the earnest money with interest at the rate of 18% p.a., and that this Court had alternatively decreed the said suit of the Plaintiff for refund of earnest money with interest at the rate of 18% p.a. But the Defendant – Judgment Debtor is said to have failed to make any payment of such on 03.02.2023, this Court had ordered an attachment of schedule property belonging to Judgment Debtor and that on 20.02.2023, the schedule property so attached was also proclaimed for sale by way of substituted service i.e., beating of Tom-Tom and in pursuance of the

said sale of proclamation on 24.05.2023, the date was scheduled for spot sale, but not of the bidders participated in the said Auction Sale.

2.2 Further it is also contended that the Decree Holder is said to have made an application before this Court and sought permission to participate in the bid i.e., Auction Sale and accordingly, the application was allowed and the Decree Holder was permitted to participate in the Auction Sale that was conducted on 16.01.2024 and he was declared as highest bidder and that the sale certificate was also issued in favour of Decree Holder as on 17.02.2024 and that in pursuance of the sale certificate, the Decree Holder has approached this Court seeking for vacant possession of the schedule property and in this regard, the Decree Holder has sought for issuance of notice to the Judgment Debtor to deliver the vacant possession of the schedule property.

3. Along with the said application, the Decree Holder has also furnished the certificate issued by this Court towards Auction Sale Certificate and also in the said certificate, the Decree Holder is said to have paid a sum of Rs.2,21,250/- and that as contended by Decree Holder, the sale proclamation is ordered and accordingly, a specific order is also passed with regard to the application (I.A.No.3) filed by this Decree Holder under Order 21 Rule 72 r/w Section 151 of CPC as

on 15.11.2023, seeking permission to participate in the Auction Sale and further in presence of Decree Holder and Judgment Debtor, the Decree Holder is declared as the successful highest auction bidder, for a sum of Rs.44,25,000/- and that the order of set off the Decree Holder has agreed to purchase the schedule property for a sum of Rs.44,25,000/- and further the Judgment Debtor was given an opportunity to deposit the decreetal amount within a period of limitation, so that he could retain the property. But subsequently, no alteration is made by Judgment Debtor. Accordingly, the Decree Holder was declared as per the earlier order the highest bidder and set off the decreetal amount of Rs.45,03,145/- against the purchase money, sale certificate was issued. Accordingly, in pursuance of the same, the Decree Holder has approached this Court by way of this application seeking vacant possession of the attached property i.e., schedule property.

4. Having perused the same, the Decree Holder has made out grounds for issuance of delivery notice to the Judgment Debtor to deliver the vacant possession of the schedule property. Accordingly, I proceed to pass the following:

ORDER

I.A.No.4 filed by Decree Holder under Order 21 Rule 95 r/w Section 151 of CPC is hereby allowed.

Accordingly, since the decree of this Court is dated 09.11.2022, which is within two years from the date of the decree, issue delivery warrant as against Judgment Debtor in respect of the schedule property to hand over the vacant possession of the schedule property.

(Dictated to the Stenographer Grade – I, transcribed and typed by him, corrected, printout taken, signed and then pronounced by me in the open Court on this the 3rd day of July, 2024)

(A.M. NALINI KUMARI)
XIV Addl. City Civil & Sessions Judge,
Bengaluru City.

